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California Assembly Members Introduce Bill to Ban Certain Color Additives

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In February 2023, California Assemblymembers Jesse Gabriel and Buffy Wicks introduced legislation (AB 418) that would prohibit the manufacture or distribution In California of foods containing the additives red dye No. 3, potassium bromate, brominated vegetable oil, titanium dioxide, and propyl paraben.

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The color additives are commonly found in candies, drinks, and baked goods, including items marketed to children, though some have claimed that they have been linked to cancer, behavioral health problems, and harm to the reproductive system.

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In the U.S., red dye No. 3 was previously banned in cosmetics in 1990, after studies suggested that it caused thyroid cancer in rats at high doses. It is already banned in foods in the European Union. However, industry groups have argued that there is insufficient scientific evidence linking synthetic colors in food to negative health or behavior effects.

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In October 2022, Consumer Reports, the Center for Science in the Public Interest, and other groups and individuals wrote to the U.S. Food and Drug Administration (FDA) petitioning to "remove Red No. 3 from the permanent list of color additives approved for use in food and dietary supplements... and for use in ingested drugs... because the FDA has found that the additive induces cancer and is unsafe." FDA has stated that it will "continue to engage in the scientific and regulatory review of color additives."

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Given that the targeted color additives have been approved by FDA, enactment of the proposed California legislation almost certainly would trigger legal challenges.

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